17 October 2025

Committee Secretary
Joint Standing Committee on Electoral Matters
PO Box 6021
Parliament House
Canberra ACT 2600

Inquiry into the 2025 federal election

1. Ripple Legal welcomes the opportunity to provide a submission to the Committee's inquiry into the 2025 federal election. Ripple Legal sits at the heart of law and politics. We combine expertise in electoral, political and public law with a commitment to strengthening Australia's legal and democratic frameworks. Over the past decade Ripple Legal's principal has advised a wide range of individuals, companies and organisations involved in Australian elections and the 2023 referendum and has acted in significant electoral court cases including *Garbett v Liu* (2019) and *Kapterian v Boele* (2025).

2. This submission addresses four areas:

   (a) Reforming the authorisation system.

   (b) Standardising signage and council guidelines to simplify electioneering.

   (c) Protecting the integrity of our electoral system, including banning lies in political advertising and misfeasance in elections by third party actors.

   (d) The Electoral Legislation Amendment (Electoral Reform) Act 2025 (Cth).

3. The recommendations outlined below are intended to improve and safeguard our electoral system into the future. But they do not mean that anything is fundamentally broken. To the contrary, Australians should be incredibly proud of our electoral system and the role of the independent Australian Electoral Commission.

4. **Authorisation**

4.1 The primary purpose of authorisation is to provide information to readers about who has created a political message. However, the current laws are outdated and not fit for purpose. The problems are well known: they create disproportionate burdens on some political participants – such as requiring publication of personal addresses or forcing authorisation into formats ill-suited to social media - while allowing increasing amounts of political material to lawfully go unauthorised (for example, online content not produced by a disclosure entity).

4.2 The authorisation requirements should be rebuilt from the ground up, not merely tweaked. They should be designed to fulfil their fundamental purpose: ensuring the community knows who is responsible for political communications.

Recommendations:

A. Create a new definition for materials which need to be authorised

Create a new term for what needs to be authorised. Decouple authorisation triggers from disclosure triggers. This approach has been adopted in New South Wales and Victoria, where discrete terms are used in respect of the material requiring authorisation. Typically, the definitions capture content which is objectively "likely" to affect voting in the election – a broader concept than the terms used to trigger disclosure obligations. A new, broader authorisation trigger may necessitate further amendments to ease the burden on non-disclosure entities who could struggle to assess whether content is likely to affect voting at any particular point in time. One solution here is to create a window of, say, 6 months before the last date for a general election (and after the issue of a writ for any by-election or earlier election), in which non-disclosure entities have to authorise their political content. It is difficult to see why a disclosure entity should not be required to authorise political material at all times, not just in that 6-month window.

B. Graduated enforcement and proportional penalties

Create graduated penalties and enforcement options. Many authorisation breaches are accidental and inconsequential (ie. forgetting to include an authorisation on a candidate's own corflute) or technical (the authorisation was difficult to include in the particular medium or there was an error in the wording). The AEC should be empowered to issue warning notices in appropriate cases which appear to be accidental or technical with the ability to escalate to penalties for deliberate or egregious breaches/further non-compliance.

C. Modernised and adaptable authorisation formats

Expand the powers of the AEC so that their determinations can cover the content of the authorisation as well as the manner of authorisation. This will keep pace with current trends and new forms of communication. Such determinsations should allow authorisers to include contact details which do not have the effect of doxxing themselves – a concern for many in the current environment – and be adapted to emerging communication tools, for example, where it can be impractical on social media to include the full name of a person and organisation.

5. Reducing uncertainty in federal election campaigning

5.1 Each election has recurring issues around differential (and sometimes unlawful) council restrictions on election signage and canvassing. These inconsistencies create uncertainty for campaigners and administrative burden for councils.

5.2 Local community groups often need to navigate multiple councils, each applying different signage or canvassing restrictions. Councils face conflicting demands from residents and resource constraints. Local planning laws are not appropriate to govern federal election campaigns and are at risk of being applied in a manner which impermissibly burdens the implied freedom of political communication. If the law is not clear or the Council is wrong in its

interpretation, then a campaign may go to court (as seen in *Badger v Bayside City Council* [2022] VSC 140 and the recent *Smith v City of Boroondara* [2025] VSC), but this is not a solution available to all.

Recommendation:

D. Amend the Commonwealth Electoral Act to standardise laws on public campaigning in federal elections

That the Committee amend the Act to create regime for federal elections and referenda which balances the right to display election signage and canvass voters against safety and good-order limitations. Further submissions may be required on the appropriate balance, but such an amendment would help standardise expectations, strengthen participation and reduce administrative burdens on local councils.

6. Protecting the integrity of the electoral system, including prohibitions on lies in political advertising

6.1 In 2022 Ripple Legal's principle, Kiera Peacock, made a submission to JSCEM (No. 337, 2022) arguing for a ban on lies in political advertising - not regulation of "truth," but accountability for objectively false factual claims. That position remains our frame.

6.2 Since 2022 the landscape of democracy has changed. AI has continued to improve exponentially and the tools to create lifelike visual and audio impersonations are very accessible. The past 18 months have seen the following accounts of AI being used to seek to mislead voters about candidates in elections:

(a) United States (Jan 2024, New Hampshire): AI-cloned "Joe Biden" robocalls told voters not to vote in Democratic primaries. The Federal Communication Commission banned AI voices in robocalls and later issued multi-million-dollar fines/charges against those responsible.

(b) Slovakia (Sept 2023 national election): AI-manipulated audio featuring a candidate discussing how to rig the election (and raise the price of beer!) went viral during election campaign.

(c) United Kingdom (Oct 2023; resurfaced 2025): Deepfake audio/video targeting Keir Starmer in which he appears to be abusing staffers and then separately criticising the city of Liverpool circulated around the Labour conference.

(d) India (2024 general election): Documented surge of AI-manipulated content (deepfakes and synthetic clips) across platforms, using Bollywood stars and people giving fake endorsements of candidates as well as others using inflammatory racist language.

6.3 We do not advocate banning AI; it can be a powerful means engagement and an effective tool of satire. But its use in electoral contexts should be declared.

6.4 On regulating lies in political advertising, the improvement of the authorisation system would help improve social (not legal) accountability for dissemination of lies or misleading materials.

6.5 We understand concerns that a prohibition on lies in political advertising has the potential to negatively impact on public perception of democracy, despite their intent being to protect democracy. That said, Australian jurisdictions which have sanctioned lies have all had a positive experience.

6.6 Any solution to this must be based on the Australian experience and political system, informed but not determined by global events.

6.7 In our view, the concern that prohibiting lies in political advertising amounts to State suppression of free speech can be addressed by having a proportionate toolkit to respond to different forms of harmful content. For example, AI generated content which depicts candidates or influential figures and misrepresents their views has the potential to cause significantly more harm than an advertisement with no factual foundation. The former should be sanctioned with a penalty, the latter could be addressed by a show cause notice which is then published.

6.8 The recent European Union experience is instructive in the need for careful calibration of any laws which regulate third party disseminators of content, like social media platforms. EU regulations commencing this month require platforms to label political ads and publish details about ad targeting techniques and the identity of its sponsors. Large platforms have obligations to ensure the content posted complies with these labelling requirements. Google, Meta and Microsoft responded to the laws by removing paid political ads on their platforms.

6.9 Tik Tok already has a policy of not permitting paid political ads on its platform. The prohibition does not remove political content from the platform. It just removes the ability of people to pay for ads which may counter the organic content which will otherwise feed the algorithms of users.

6.10 A key design question is how to regulate AI and deceptive content without further incentivising the drive of political communication into opaque, unregulated spaces such as encrypted chats or fringe platforms, or create vacuums in political discourse which can be filled by those with ulterior motives.

6.11 This is not, in our view, an impediment to regulation but it is a key consideration in the design of any law.

<u>Recommendations</u>

E. Mandate disclosure of AI use in political advertising

Laws be implemented mandating disclosure of AI use in political advertising and creating a framework for the regulator to request platforms remove infringing content (one step short of requiring the platform to label and remove of its own accord).

F. Review of the Electoral Legislation Amendment (Electoral Communications) Bill 2024

The Electoral Legislation Amendment (Electoral Communications) Bill 2024 introduced in the 47th Parliament should be the subject of specific review and feedback before this inquiry or a separate dedicated inquiry. Whilst there are many positive features of the bill which appear to warrant implementation, these are complex matters which strike at the core of our democracy.

Proper consultation on the draft of the bill should occur to identify any unintended consequences (as in the case of the EU) or improper impact on political discourse.

7. **Electoral Legislation Amendment (Electoral Reform) Act 2025 (Cth) (Amendment Act**)

7.1 The Amendment Act significantly affects campaign finance, electoral expenditure, and ease of participation in elections.

7.2 The Grattan Institute, The Australia Institute and Professor Anne Twomey have already given evidence to the Committee about the unfair operation of the laws. Such perspectives demonstrate why the bill should have been referred to a committee for review and public consultation prior to being passed.

7.3 As with the position outlined above re political advertising reform, legislative amendments which go to the core of our elections and our democracy should rightfully be the subject of broad scrutiny. Whilst bi-partisan support goes some way to ensuring the laws have continuity and will not be repealed, bi-partisan negotiations do not give voice to the experiences of non-major party political actors and are unlikely to consider the emergence of new political organisations. In so doing, the approach risks entrenching a legislated status quo. The speed with which the laws were compiled and introduced has also led to what appear to be errors or unintended consequences.

7.4 However, this submission will focus on the overarching design flaw of the laws. Put simply, the laws are far too complex. The Acting Electoral Commissioner has told this Committee that the Amendment Act changes are some of the most complicated ever observed, a view shared with him by various people of legal backgrounds.

7.5 By way of example, the definition of gift in the Amendment Act is about 4 pages long and whether something is a gift can depend on who is paying it, when it is paid, how much it is and what the recipient does with it. The word “gift” appears over 800 times in the legislation so its definition is of critical importance.

7.6 A healthy democracy is built on public participation. Public participation requires an environment where people feel they are equipped with the knowledge they need to participate. If legal budgets and legal expertise are necessary precursors to engagement, then the laws are not serving the interests of democracy.

7.7 The AEC has historically performed a critical role in helping explain the electoral laws to participants in a plain English manner, reducing barriers to entry. One concern we have is that the AEC may be unable to perform this role effectively where the laws are too complicated to reduce to simple guidance. Experiences with increasingly complicated legislation in other jurisdictions is that the respective commissioners feel comfortable only repeating the text of the statute rather than converting it to plain English.

<u>Recommendation</u>

G. A review be conducted of the Amendment Act with a view to simplifying the drafting. **This review should be in conjunction with or in addition to a proper public consultation on the impact of the new laws on all forms of political participants.**

Yours sincerely

[redacted]

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